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NOTICE OF ALLOWANCE AND FEE(S) DUE

25944 7590 02/12/2026

OLIFF PLC
P.O. BOX 320850
ALEXANDRIA, VA 22320-4850

EXAMINER	
ANDREWS, FELIX BRYAN	
ART UNIT	PAPER NUMBER
2812	

DATE MAILED: 02/12/2026

APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
18/133,639	04/12/2023	Tetsuya SHIBATA	224232	8276

TITLE OF INVENTION: LIGHT DETECTION ELEMENT HAVING FIRST AND SECOND FERROMAGNETIC LAYERS SANDWICHING SPACER LAYER AND RECEIVING DEVICE

APPLN. TYPE	ENTITY STATUS	ISSUE FEE DUE	PUBLICATION FEE DUE	PREV. PAID ISSUE FEE	TOTAL FEE(S) DUE	DATE DUE
nonprovisional	UNDISCOUNTED	$1290	$0.00	$0.00	$1290	05/12/2026

THE APPLICATION IDENTIFIED ABOVE HAS BEEN EXAMINED AND IS ALLOWED FOR ISSUANCE AS A PATENT. PROSECUTION ON THE MERITS IS CLOSED. THIS NOTICE OF ALLOWANCE IS NOT A GRANT OF PATENT RIGHTS. THIS APPLICATION IS SUBJECT TO WITHDRAWAL FROM ISSUE AT THE INITIATIVE OF THE OFFICE OR UPON PETITION BY THE APPLICANT. SEE 37 CFR 1.313 AND MPEP 1308.

THE ISSUE FEE AND PUBLICATION FEE (IF REQUIRED) MUST BE PAID WITHIN THREE MONTHS FROM THE MAILING DATE OF THIS NOTICE OR THIS APPLICATION SHALL BE REGARDED AS ABANDONED. THIS STATUTORY PERIOD CANNOT BE EXTENDED. SEE 35 U.S.C. 151. THE ISSUE FEE DUE INDICATED ABOVE DOES NOT REFLECT A CREDIT FOR ANY PREVIOUSLY PAID ISSUE FEE IN THIS APPLICATION. IF AN ISSUE FEE HAS PREVIOUSLY BEEN PAID IN THIS APPLICATION (AS SHOWN ABOVE), THE RETURN OF PART B OF THIS FORM WILL BE CONSIDERED A REQUEST TO REAPPLY THE PREVIOUSLY PAID ISSUE FEE TOWARD THE ISSUE FEE NOW DUE.

HOW TO REPLY TO THIS NOTICE:

I. Review the ENTITY STATUS shown above. If the ENTITY STATUS is shown as SMALL or MICRO, verify whether entitlement to that entity status still applies.

If the ENTITY STATUS is the same as shown above, pay the TOTAL FEE(S) DUE shown above.

If the ENTITY STATUS is changed from that shown above, on PART B - FEE(S) TRANSMITTAL, complete section number 5 titled "Change in Entity Status (from status indicated above)".

For purposes of this notice, small entity fees are 40% the amount of undiscounted fees, and micro entity fees are 20% the amount of undiscounted fees.

II. PART B - FEE(S) TRANSMITTAL, or its equivalent, must be completed and returned to the United States Patent and Trademark Office (USPTO) with your ISSUE FEE and PUBLICATION FEE (if required). If you are charging the fee(s) to your deposit account, section "4b" of Part B - Fee(s) Transmittal should be completed. If an equivalent of Part B is filed, a request to reapply a previously paid issue fee must be clearly made, and delays in processing may occur due to the difficulty in recognizing the paper as an equivalent of Part B.

III. All communications regarding this application must give the application number. Please direct all communications prior to issuance to Mail Stop ISSUE FEE unless advised to the contrary.

IMPORTANT REMINDER: Maintenance fees are due in utility patents issuing on applications filed on or after Dec. 12, 1980. It is patentee's responsibility to ensure timely payment of maintenance fees when due. More information is available at www.uspto.gov/PatentMaintenanceFees.

PART B - FEE(S) TRANSMITTAL

Complete and send this form, together with applicable fee(s), by mail or fax, or via the USPTO patent electronic filing system.

By mail, send to: Mail Stop ISSUE FEE
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P.O. Box 1450
Alexandria, Virginia 22313-1450

By fax, send to: (571)-273-2885

INSTRUCTIONS: This form should be used for transmitting the ISSUE FEE and PUBLICATION FEE (if required). Blocks 1 through 5 should be completed where appropriate. All further correspondence will be mailed to the current correspondence address as indicated unless corrected below or directed otherwise in Block 1, by (a) specifying a new correspondence address; and/or (b) indicating a separate "FEE ADDRESS" for maintenance fee notifications. **Because electronic patent issuance may occur shortly after issue fee payment, any desired continuing application should preferably be filed prior to payment of this issue fee in order not to jeopardize copendency.**

CURRENT CORRESPONDENCE ADDRESS (Note: Use Block 1 for any change of address)

25944 7590 02/12/2026

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P.O. BOX 320850
ALEXANDRIA, VA 22320-4850

Note: A certificate of mailing can only be used for domestic mailings of the Fee(s) Transmittal. This certificate cannot be used for any other accompanying papers. Each additional paper, such as an assignment or formal drawing, must have its own certificate of mailing or transmission.

Certificate of Mailing or Transmission

I hereby certify that this Fee(s) Transmittal is being deposited with the United States Postal Service with sufficient postage for first class mail in an envelope addressed to the Mail Stop ISSUE FEE address above, or being transmitted to the USPTO via the USPTO patent electronic filing system or by facsimile to (571) 273-2885, on the date below.

(Typed or printed name)
(Signature)
(Date)

APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
18/133,639	04/12/2023	Tetsuya SHIBATA	224232	8276

TITLE OF INVENTION: LIGHT DETECTION ELEMENT HAVING FIRST AND SECOND FERROMAGNETIC LAYERS SANDWICHING SPACER LAYER AND RECEIVING DEVICE

APPLN. TYPE	ENTITY STATUS	ISSUE FEE DUE	PUBLICATION FEE DUE	PREV. PAID ISSUE FEE	TOTAL FEE(S) DUE	DATE DUE
nonprovisional	UNDISCOUNTED	$1290	$0.00	$0.00	$1290	05/12/2026

EXAMINER	ART UNIT	CLASS-SUBCLASS
ANDREWS, FELIX BRYAN	2812	257-431000

1. Change of correspondence address or indication of "Fee Address" (37 CFR 1.363).

❑ Change of correspondence address (or Change of Correspondence Address form PTO/AIA/122 or PTO/SB/122) attached.

❑ "Fee Address" indication (or "Fee Address" Indication form PTO/AIA/47 or PTO/SB/47; Rev 03-02 or more recent) attached. **Use of a Customer Number is required.**

2. For printing on the patent front page, list
(1) The names of up to 3 registered patent attorneys or agents OR, alternatively,
(2) The name of a single firm (having as a member a registered attorney or agent) and the names of up to 2 registered patent attorneys or agents. If no name is listed, no name will be printed.

1 _____
2 _____
3 _____

3. ASSIGNEE NAME AND RESIDENCE DATA TO BE PRINTED ON THE PATENT (print or type)

PLEASE NOTE: Unless an assignee is identified below, no assignee data will appear on the patent. If an assignee is identified below, the document must have been previously recorded, or filed for recordation, as set forth in 37 CFR 3.11 and 37 CFR 3.81(a). Completion of this form is NOT a substitute for filing an assignment.

(A) NAME OF ASSIGNEE (B) RESIDENCE: (CITY and STATE OR COUNTRY)

Please check the appropriate assignee category or categories (will not be printed on the patent) : ❑ Individual ❑ Corporation or other private group entity ❑ Government

4a. Fees submitted: ❑Issue Fee ❑Publication Fee (if required)

4b. Method of Payment: *(Please first reapply any previously paid fee shown above)*

❑ Electronic Payment via the USPTO patent electronic filing system ❑ Enclosed check ❑ Non-electronic payment by credit card (Attach form PTO-2038)

❑ The Director is hereby authorized to charge the required fee(s), any deficiency, or credit any overpayment to Deposit Account No. _____

5. **Change in Entity Status** (from status indicated above)

❑ Applicant certifying micro entity status. See 37 CFR 1.29

NOTE: Absent a valid certification of Micro Entity Status (see forms PTO/SB/15A and 15B), issue fee payment in the micro entity amount will not be accepted at the risk of application abandonment.

❑ Applicant asserting small entity status. See 37 CFR 1.27

NOTE: If the application was previously under micro entity status, checking this box will be taken to be a notification of loss of entitlement to micro entity status.

❑ Applicant changing to regular undiscounted fee status.

NOTE: Checking this box will be taken to be a notification of loss of entitlement to small or micro entity status, as applicable.

NOTE: This form must be signed in accordance with 37 CFR 1.31 and 1.33. See 37 CFR 1.4 for signature requirements and certifications.

Authorized Signature _____ Date _____

Typed or printed name _____ Registration No. _____

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Determination of Patent Term Adjustment under 35 U.S.C. 154 (b)
(Applications filed on or after May 29, 2000)

The Office has discontinued providing a Patent Term Adjustment (PTA) calculation with the Notice of Allowance.

Section 1(h)(2) of the AIA Technical Corrections Act amended 35 U.S.C. 154(b)(3)(B)(i) to eliminate the requirement that the Office provide a patent term adjustment determination with the notice of allowance. See Revisions to Patent Term Adjustment, 78 Fed. Reg. 19416, 19417 (Apr. 1, 2013). Therefore, the Office is no longer providing an initial patent term adjustment determination with the notice of allowance. The Office will continue to provide a patent term adjustment determination with the Issue Notification Letter that is mailed to applicant approximately three weeks prior to the issue date of the patent, and will include the patent term adjustment on the patent. Any request for reconsideration of the patent term adjustment determination (or reinstatement of patent term adjustment) should follow the process outlined in 37 CFR 1.705.

Any questions regarding the Patent Term Extension or Adjustment determination should be directed to the Office of Patent Legal Administration at (571)-272-7702. Questions relating to issue and publication fee payments should be directed to the Customer Service Center of the Office of Patent Publication at 1-(888)-786-0101 or (571)-272-4200.

OMB Clearance and PRA Burden Statement for PTOL-85 Part B

The Paperwork Reduction Act (PRA) of 1995 requires Federal agencies to obtain Office of Management and Budget approval before requesting most types of information from the public. When OMB approves an agency request to collect information from the public, OMB (i) provides a valid OMB Control Number and expiration date for the agency to display on the instrument that will be used to collect the information and (ii) requires the agency to inform the public about the OMB Control Number's legal significance in accordance with 5 CFR 1320.5(b).

The information collected by PTOL-85 Part B is required by 37 CFR 1.311. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.14. This collection is estimated to take 30 minutes to complete, including gathering, preparing, and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, Virginia 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, Virginia 22313-1450. Under the Paperwork Reduction Act of 1995, no persons are required to respond to a collection of information unless it displays a valid OMB control number.

Privacy Act Statement

The Privacy Act of 1974 (P.L. 93-579) requires that you be given certain information in connection with your submission of the attached form related to a patent application or patent. The United States Patent and Trademark Office (USPTO) collects the information in this record under authority of 35 U.S.C. 2. The USPTO's system of records is used to manage all applicant and owner information including name, citizenship, residence, post office address, and other information with respect to inventors and their legal representatives pertaining to the applicant's/ owner's activities in connection with the invention for which a patent is sought or has been granted. The applicable Privacy Act System of Records Notice for the information collected in this form is COMMERCE/PAT-TM-7 Patent Application Files, available in the Federal Register at 78 FR 19243 (March 29, 2013).
https://www.govinfo.gov/content/pkg/FR-2013-03-29/pdf/2013-07341.pdf

Routine uses of the information in this record may include disclosure to:

1) law enforcement, in the event that the system of records indicates a violation or potential violation of law;
2) a federal, state, local, or international agency, in response to its request;
3) a contractor of the USPTO having need for the information in order to perform a contract;
4) the Department of Justice for determination of whether the Freedom of Information Act (FOIA) requires disclosure of the record;
5) a Member of Congress submitting a request involving an individual to whom the record pertains, when the individual has requested the Member's assistance with respect to the subject matter of the record;
6) a court, magistrate, or administrative tribunal, in the course of presenting evidence, including disclosures to opposing counsel in the course of settlement negotiations;
7) the Administrator, General Services Administration (GSA), or their designee, during an inspection of records conducted by GSA under authority of 44 U.S.C. 2904 and 2906, in accordance with the GSA regulations and any other relevant (i.e., GSA or Commerce) directive, where such disclosure shall not be used to make determinations about individuals;
8) another federal agency for purposes of National Security review (35 U.S.C. 181) and for review pursuant to the Atomic Energy Act (42 U.S.C. 218(c));
9) the Office of Personnel Management (OPM) for personnel research purposes; and
10) the Office of Management and Budget (OMB) for legislative coordination and clearance.

If you do not furnish the information requested on this form, the USPTO may not be able to process and/or examine your submission, which may result in termination of proceedings, abandonment of the application, and/or expiration of the patent.

Notice of Allowability	Application No. 18/133,639	Applicant(s) SHIBATA et al.	
	Examiner FELIX B ANDREWS	Art Unit 2812	AIA (First Inventor to File) Status Yes

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address--

All claims being allowable, PROSECUTION ON THE MERITS IS (OR REMAINS) CLOSED in this application. If not included herewith (or previously mailed), a Notice of Allowance (PTOL-85) or other appropriate communication will be mailed in due course. **THIS NOTICE OF ALLOWABILITY IS NOT A GRANT OF PATENT RIGHTS.** This application is subject to withdrawal from issue at the initiative of the Office or upon petition by the applicant. See 37 CFR 1.313 and MPEP 1308.

1. ☑ This communication is responsive to 07 November 2025.
   ☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.

2. ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

3. ☑ The allowed claim(s) is/are 1-4,7 and 9 . As a result of the allowed claim(s), you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information , please see **http://www.uspto.gov/patents/init_events/pph/index.jsp** or send an inquiry to **PPHfeedback@uspto.gov.**

4. ☑ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

   Certified copies:

   a) ☑ All b) ☐ Some* c) ☐ None of the:

   1. ☑ Certified copies of the priority documents have been received.
   2. ☐ Certified copies of the priority documents have been received in Application No. _____ .
   3. ☐ Copies of the certified copies of the priority documents have been received in this national stage application from the International Bureau (PCT Rule 17.2(a)).

   * Certified copies not received: _____ .

Applicant has THREE MONTHS FROM THE "MAILING DATE" of this communication to file a reply complying with the requirements noted below. Failure to timely comply will result in ABANDONMENT of this application.
THIS THREE-MONTH PERIOD IS NOT EXTENDABLE.

5. ☐ CORRECTED DRAWINGS (as "replacement sheets") must be submitted.
   ☐ including changes required by the attached Examiner's Amendment / Comment or in the Office action of Paper No./Mail Date _____ .

   Identifying indicia such as the application number (see 37 CFR 1.84(c)) should be written on the drawings in the front (not the back) of each sheet. Replacement sheet(s) should be labeled as such in the header according to 37 CFR 1.121(d).

6. ☐ DEPOSIT OF and/or INFORMATION about the deposit of BIOLOGICAL MATERIAL must be submitted. Note the attached Examiner's comment regarding REQUIREMENT FOR THE DEPOSIT OF BIOLOGICAL MATERIAL.

Attachment(s)

1. ☐ Notice of References Cited (PTO-892)
2. ☐ Information Disclosure Statements (PTO/SB/08), Paper No./Mail Date _____.
3. ☐ Examiner's Comment Regarding Requirement for Deposit of Biological Material _____.
4. ☐ Interview Summary (PTO-413), Paper No./Mail Date. _____.
5. ☐ Examiner's Amendment/Comment
6. ☑ Examiner's Statement of Reasons for Allowance
7. ☐ Other _____.

/FELIX B ANDREWS/ Examiner, Art Unit 2812	/William B Partridge/ Supervisory Patent Examiner, Art Unit 2812

DETAILED ACTION

Notice of Pre-AIA or AIA Status

1. The present application, filed on or after March 16, 2013, is being examined under the first inventor to file provisions of the AIA.

Response to Arguments

1. Applicant's arguments, see REMARKS, filed 11/07/2025, with respect to the title have been fully considered and are persuasive. The objection of 08/25/2025 has been withdrawn.

2. Applicant's arguments, see REMARKS, filed 11/07/2025, have been fully considered and are persuasive. The rejections of 08/25/2025 has been withdrawn.

Allowable Subject Matter

2. Claim 6 is objected to as being dependent upon a rejected base claim, but would be allowable if rewritten in independent form including all of the limitations of the base claim and any intervening claims.

3. The following is a statement of reasons for the indication of allowable subject matter:

Regarding claim 1, Degawa (US 2019/0305215) teaches A light detection element comprising:

A magnetic element **[**fig. 8, magnetoresistance element 101, para 8**]**,

a capacitor **[**fig. 8, para 121, *"a capacitor may be provided in the output signal line **122** (as an example, the output signal line **122** between a part of an inductor **125** connected to the output signal line **122** and the second port **121**) between a part constituting a closed circuit with a power supply **127**, the output signal line **122**, the magnetoresistance effect element **101**, a line **124**, and the ground G and the second port **121**. When a capacitor is provided in the part, it is possible to avoid applying an invariant component of a current to an output signal output from the second port **121**."***]**,

and a resistor **[**fig. 8, para 143, *"a resistance element may be used in place of the inductor **125"***]**,

wherein the magnetic element **(**fig. 1A/8, 101**)** and the capacitor are connected in series **[**fig. 8, para 121; wherein the capacitor may be

provided in the output signal line 122 thereby one of ordinary skill would understand the capacitor to be in series with the magnetic element 101**]**,

the resistor is connected to the magnetic element and the capacitor in parallel **[**fig. 8, para 143**]**,

the magnetic element includes a first ferromagnetic layer **[**fig. 1A/8, first ferromagnetic layer 101A, para 8**]** ,

a second ferromagnetic layer **[**fig. 1A/8, second ferromagnetic layer 101B, para 8**]**,

and a spacer layer **[**fig. 1A/8, spacer layer 101C, para 8**]** sandwiched between the first ferromagnetic layer and the second ferromagnetic layer **[**fig. 1/8**]**.

Degawa fails to explicitly disclose the magnetic element is configured to be irradiated with a light containing an optical signal with a change of intensity of the light.

However Ichimura (US 2004/0207961) teaches wherein the magnetic element **[**fig. 4, MR device 40, para 49**]** is configured to be irradiated with a light containing an optical signal with a change of intensity of the light **[**para 90**]**.

Therefore it would have been obvious to someone of ordinary skill in the art before the effective filing date of the claimed invention for the magnetic element to be configured to be irradiated with a light containing an optical signal with a change of intensity of the light to optically tune the magnetic properties leading to changes in electrical resistance.

Degawa/Ichimura teaches wherein the magnetic element **(**fig. 1/8, 101**)** has a first surface **(**top surface**)** and a second surface **(**bottom surface**)** opposing each other in a laminating direction of the magnetic element **(**fig. 1/8**)**.

Degawa/Ichimura fails to explicitly disclose a third electrode layer and

a second dielectric body,

a position of the second dielectric body is between the third electrode layer and the second surface in the laminating direction

and the second dielectric body and the third electrode layer constitute at least a part of the capacitor.

However, Zhu (US 2019/0157345) teaches a third electrode layer **[**fig. 23b, para 91; wherein *"an upper electrode layer may be formed over the free layer **1053"***]**]**, and

a second dielectric body **[**annotated fig. 23b, interlayer dielectric layer 1055, para 92**]**,

a position of the second dielectric body is between the third electrode layer and the second surface **(**bottom surface**)** in the laminating direction **[**annotated fig. 23b**]**

and the second dielectric body and the third electrode layer constitute at least a part of the capacitor **[**fig. 23b, wherein the MTJ structure 1055/1053/1051/1049/upper & lower electrodes constitute a capacitive structure**]**.

Therefore it would have been obvious to someone of ordinary skill in the art before the effective filing date of the claimed invention for the device to comprise a second dielectric body to provide electrical insulation preventing direct current flow ensuring reliability of the device.

The prior art made of record fails to explicitly disclose

a second connecting via and a fourth electrode layer,

wherein the resistor is connected to the third electrode layer branched off from the third electrode layer at a connecting part

and the resistor is located between the connecting part and the second connecting, via,

and the fourth electrode layer is electrically connected to the first surface and the second connecting via

and electrically connected to the third electrode layer via the second connecting via and the resistor.

Thereby claim 1 contains allowable subject matter in light of the additional limitations recited therein.

Claims 2-4 & 7 contain allowable subject matter at least based upon their dependency on claim 1.

Regarding claim 9, Degawa teaches A receiving device comprising

a magnetic element **[**fig. 8, magnetoresistance element 101, para 8**]**,

and a circuit **[**fig. 8**]**,

wherein the magnetic element includes a first ferromagnetic layer **[**fig. 1A/8, first ferromagnetic layer 101A, para 8**]**,

a second ferromagnetic layer **[**fig. 1A/8, second ferromagnetic layer 101B, para 8**]**,

and a spacer layer **[**fig. 1A/8, spacer layer 101C, para 8**]** sandwiched between the first ferromagnetic layer and the second ferromagnetic layer **[**fig. 1/8**]**.

the circuit is connected to the magnetic element and is configured to output a voltage with a magnitude corresponding to an amount of change per unit time of an output voltage output from the magnetic element according to the optical signal **[**fig. 8, para 61, **[***"In addition, at least one of the first electrode wiring **107** and the second electrode wiring **108** transmits a signal output from the magnetoresistance effect element **101**. For example, a direct current or a DC voltage may be applied to the magnetoresistance effect element **101** through the first electrode wiring **107** and the second electrode wiring **108**. In addition, for example, the second electrode wiring **108** may transmit a signal (a high-frequency voltage or a high-frequency current) output from the magnetoresistance effect element **101**."***]**.

Degawa fails to explicitly disclose the magnetic element is configured to be irradiated with a light containing an optical signal with a change of intensity of the light.

However Ichimura teaches wherein the magnetic element **[**fig. 4, MR device 40, para 49**]** is configured to be irradiated with a light containing an optical signal with a change of intensity of the light **[**para 90**]**.

Therefore it would have been obvious to someone of ordinary skill in the art before the effective filing date of the claimed invention for the magnetic element to be configured to be irradiated with a light containing an optical signal with a change of intensity of the light to optically tune the magnetic properties leading to changes in electrical resistance.

Degawa/Ichimura fails to explicitly disclose the receiving device is configured to receive the optical signal on a basis of the voltage output from the circuit.

While Degawa notes the optical signal to be a high-frequency voltage or current output that is sent to an output terminal to be transmitted to the outside.

Kawabata (US 2017/0238834) teaches a receiving device is configured to receive the optical signal on a basis of the voltage output from the circuit **[**para 144**]**.

Therefore it would have been obvious to someone of ordinary skill in the art before the effective filing date of the claimed invention for the device to comprise a receiving device for the optical signal from the circuit to convert optical signals into electrical signals enabling extraction, amplification, and processing of the information carried by the light signals.

Degawa/Ichimura/Kawabata further **teaches** wherein the circuit includes a capacitor connected to the magnetic element in series **[Degawa,** fig. 8, para 121**]**,

and a resistor connected to the magnetic element and the capacitor in parallel **[Degawa,** fig. 8, element 125, para 128**]**.

Degawa/Ichimura/Kawabata teaches wherein the magnetic element **(Degawa,** fig. 1/8, 101**)** has a first surface **(**top surface**)** and a second surface **(**bottom surface**)** opposing each other in a laminating direction of the magnetic element **(Degawa,** fig. 1/8**)**.

Degawa/Ichimura/Kawabata fails to explicitly disclose a third electrode layer and

a second dielectric body,

a position of the second dielectric body is between the third electrode layer and the second surface in the laminating direction

and the second dielectric body and the third electrode layer constitute at least a part of the capacitor.

However, Zhu teaches a third electrode layer **[**fig. 23b, para 91; wherein *"an upper electrode layer may be formed over the free layer **1053"***]**, and**

a second dielectric body **[**annotated fig. 23b, interlayer dielectric layer 1055, para 92**]**,

a position of the second dielectric body is between the third electrode layer and the second surface **(**bottom surface**)** in the laminating direction **[**annotated fig. 23b**]**

and the second dielectric body and the third electrode layer constitute at least a part of the capacitor **[**fig. 23b, wherein the MTJ structure 1055/1053/1051/1049/upper & lower electrodes constitute a capacitive structure**]**.

Therefore it would have been obvious to someone of ordinary skill in the art before the effective filing date of the claimed invention for the device to comprise a second dielectric body to provide electrical insulation preventing direct current flow ensuring reliability of the device.

The prior art made of record fails to explicitly disclose

a second connecting via and a fourth electrode layer,

wherein the resistor is connected to the third electrode layer branched off from the third electrode layer at a connecting part

and the resistor is located between the connecting part and the second connecting, via,

and the fourth electrode layer is electrically connected to the first surface and the second connecting via

and electrically connected to the third electrode layer via the second connecting via and the resistor.

Thereby claim 9 contains allowable subject matter in light of the additional limitations recited therein.

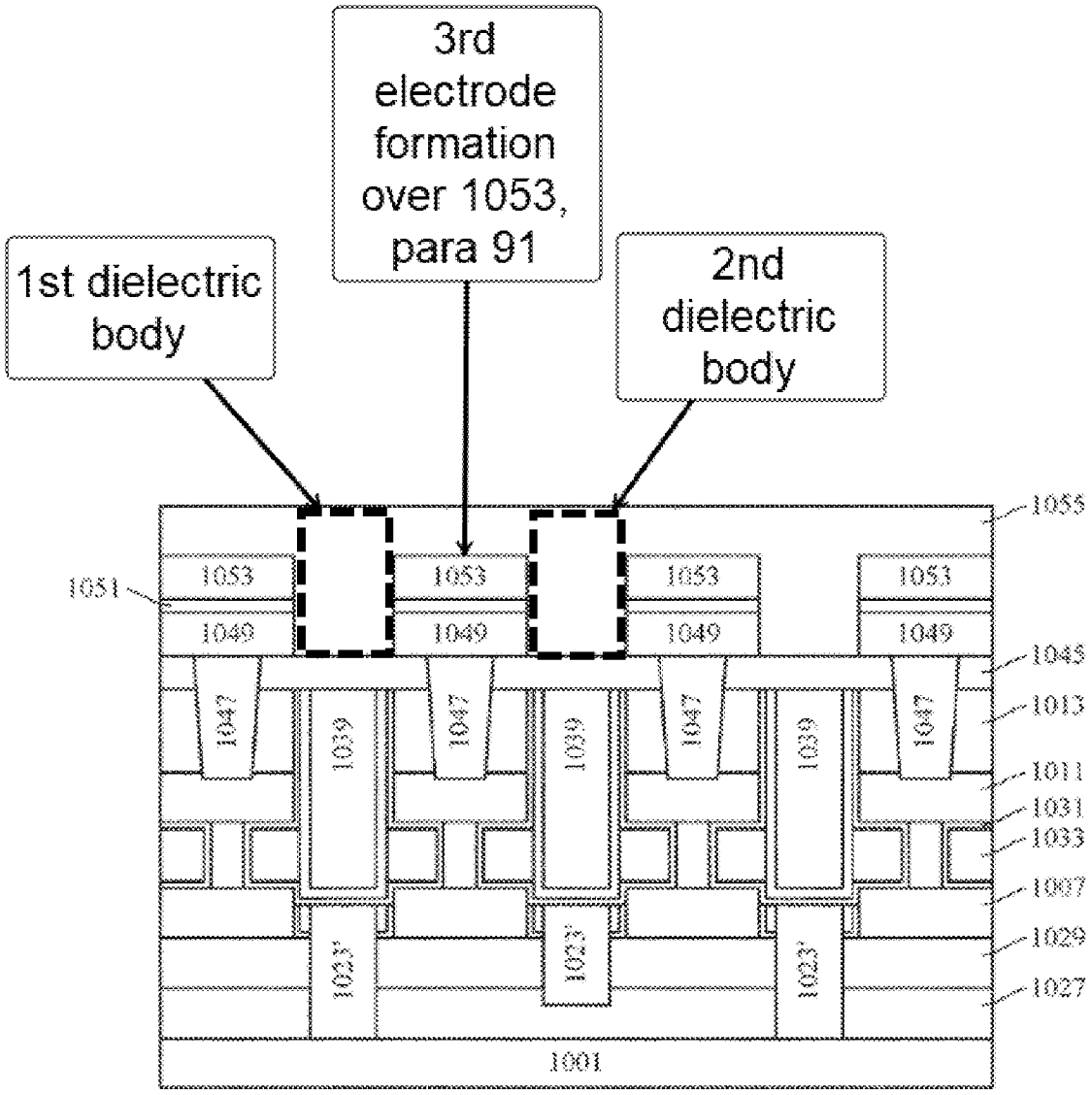


FIG. 23(b)

Zhu, Annotated Fig. 23b

Conclusion

4. Any inquiry concerning this communication or earlier communications from the examiner should be directed to FELIX B ANDREWS whose telephone number is (703)756-1074. The examiner can normally be reached Monday - Friday 8:00 am - 5:00 pm ET.

Examiner interviews are available via telephone, in-person, and video conferencing using a USPTO supplied web-based collaboration tool. To schedule an interview, applicant is encouraged to use the USPTO Automated Interview Request (AIR) at http://www.uspto.gov/interviewpractice.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, William Partridge can be reached at 571-270-1402. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of published or unpublished applications may be obtained from Patent Center. Unpublished application information in Patent Center is available to registered users. To file and manage patent submissions in Patent Center, visit: https://patentcenter.uspto.gov. Visit https://www.uspto.gov/patents/apply/patent-center for more information

about Patent Center and https://www.uspto.gov/patents/docx for information about filing in DOCX format. For additional questions, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/FELIX B ANDREWS/
Examiner, Art Unit 2812

/William B Partridge/
Supervisory Patent Examiner, Art Unit 2812